

to certify the result of the election." *United States v. Classic, supra*, 325-326. But according to the indictment they did not perform their duty. In an opinion written by Mr. Justice (later Chief Justice) Stone, in which Mr. Justice Roberts, Mr. Justice Reed, and MR. JUSTICE FRANKFURTER joined, the Court ruled, "Misuse of power, possessed by virtue of state law and made possible only because the wrongdoer is clothed with the authority of state law, is action taken 'under color of' state law." *Id.*, 326. There was a dissenting opinion; but the ruling as to the meaning of "under color of" state law was not questioned.

That view of the meaning of the words "under color of" state law, 18 U. S. C. § 242, was reaffirmed in *Screws v. United States, supra*, 108-113. The acts there complained of were committed by state officers in performance of their duties, *viz.*, making an arrest effective. It was urged there, as it is here, that "under color of" state law should not be construed to duplicate in federal law what was an offense under state law. *Id.* (dissenting opinion) 138-149, 157-161. It was said there, as it is here, that the ruling in the *Classic* case as to the meaning of "under color of" state law was not in focus and was ill-advised. *Id.* (dissenting opinion) 146-147. It was argued there, as it is here, that "under color of" state law included only action taken by officials pursuant to state law. *Id.* (dissenting opinion) 141-146. We rejected that view. *Id.*, 110-113 (concurring opinion) 114-117. We stated:

"The construction given § 20 [18 U. S. C. § 242] in the *Classic* case formulated a rule of law which has become the basis of federal enforcement in this important field. The rule adopted in that case was formulated after mature consideration. It should be good for more than one day only. We do not have here a situation comparable to *Mahnich v. Southern S. S. Co.*, 321 U. S. 96, where we